

25STCV18449 25STCV18449

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Case Number: 25STCV18449 Hearing Date: August 21, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

ALLAN LACOSTE,

Plaintiff,

vs.

GENERAL MOTORS,

LLC,

Defendant.

Case No.:

25STCV18449

Hearing Date:

August 21, 2026

Hearing Time: 8:30 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT GENERAL MOTORS LLC'S DEMURRER TO
PLAINTIFF'S FIRST AMENDED COMPLAINT

Background

On June 25, 2025,
Plaintiff Allan Lacoste ("Plaintiff") filed this lemon law action against Defendant
General Motors LLC ("GM"), alleging five causes of action. On March 25, 2026,
Plaintiff filed the operative first amended complaint ("FAC"), alleging five
causes of action for (1) violation of subdivision (d) of Civil
Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision
(a)(3) of Civil Code section 1793.2; (4) breach of
the implied warranty of merchantability; and (5) fraudulent inducement -
concealment.

GM now demurs to the fourth
and fifth causes of action of the FAC as barred by the statute of limitations. Plaintiff
did not file an opposition.

Legal
Standard

A demurrer for
sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.)
In testing the sufficiency of the complaint, the court assumes the truth of
properly pleaded factual allegations, facts reasonably inferred from those
expressly pleaded, and judicially noticed matters. ((Blank
v. Kirwan (1985) 39 Cal.3d 311, 318.) "A demurrer tests the pleadings
alone and not the evidence or other extrinsic matters. Therefore, it lies only
where the defects appear on the face of the pleading or are judicially
noticed." (SKF Farms v. Superior Court (1984)
153 Cal.App.3d 902, 905.) Accordingly, "[w]hether the plaintiff will
be able to prove the pleaded facts is irrelevant to ruling upon the
demurrer." ((Stevens v. Superior Court (1986)
180 Cal.App.3d 605, 609-610.)

Under Code of Civil Procedure section 430.10 subdivisions (e)
and (f), a demurrer may be filed if the pleading is uncertain or does not

state facts sufficient to constitute a cause of action. For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. ((Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment, otherwise, it is abuse of discretion. ((Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Discussion

GM

demurs to Plaintiff's fourth and fifth causes of action for breach of implied warranty and fraudulent inducement – concealment, respectively, based on the statute of limitations. GM also asserts that the fifth cause of action complaint fails to allege facts sufficient to state a cause of action and is barred by the economic loss rule and independent tort principle.

A. Allegations of the FAC

Plaintiff

alleges that "[o]n or about May 23, 2021, Plaintiff entered into a warranty contract with Defendant GM regarding a 2021 Cadillac Escalade ESV, ... which was manufactured and or distributed by Defendant GM." (FAC, ¶ 6.) Plaintiff alleges that "GM provided a warranty that contained various warranties, including but not limited to the bumper-bumper warranty, powertrain warranty, emission warranty, etc." (FAC, ¶ 7.)

Plaintiff

provides a non-exhaustive repair list and timeline, stating that "Plaintiff experienced defects and non-conformities in the Vehicle including, but not limited to, white smoke in the exhaust when starting the Vehicle, abnormal knocking noise from the engine bay, engine failure, and sudden automatic braking with for no apparent reason. Plaintiff presented the Vehicle to Defendant GM's authorized repair facilities at least twice for repairs during the warranty period." (FAC, ¶ 13.) Then, "[a]round April 28, 2025, Plaintiff presented the Vehicle to Defendant GM's authorized repair facility with complaints including, inter alia, white smoke in the exhaust when starting the

Vehicle, and an abnormal knocking noise while driving. Defendant's technician inspected the Vehicle, verified Plaintiff's complaints, and performed warranty repairs including replacing the engine and/or major portions of the engine. At pick up, Defendant's repair facility represented that the Vehicle had been repaired and was working as designed." (FAC, ¶ 14.) Plaintiff alleges that he "only discovered GM's concealment and wrongful conduct alleged herein around this point, when the engine failed and needed replacement, prompting Plaintiff to investigate further," and he "had no way of uncovering Defendant's deception with respect to the defects given that Defendant performed various diagnostics and/or undertook repairs and claimed that nothing was wrong with the Subject Vehicle or that the Vehicle had been repaired." (FAC, ¶¶ 15-16.)

Plaintiff

further pleads that the defects rendered the vehicle "worthless and/or de minimis." (FAC, ¶ 23.) Thus, "GM had an affirmative duty to promptly offer to repurchase or replace the Subject Vehicle at the time it failed to conform the Subject Vehicle to the terms of the express warranty after a reasonable number of repair attempts," but "failed to either promptly replace the Subject Vehicle or to promptly make restitution in accordance with the Song-Beverly Act." (FAC, ¶¶ 24-25.)

B.

Fourth Cause of Action for Breach of Implied Warranty:

Statute of Limitations

GM

contends that Plaintiff's implied warranty cause of action is time-barred.

Implied

warranty causes of action are subject to a four-year statute of limitations. (Cal. U. Com. Code, § 2725, subd. (1)) ["An action

for breach of any contract for sale must be commenced within four years after the cause of action has accrued."] "A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered." (Cal. U. Com. Code, § 2725, subd. (2)) Additionally, " (t

?YEAR?) (Civ.

Code, § 179.1, subd. (c).)

GM

asserts that because a breach of implied warranty cause of action accrues from the time the purchase was made, and Plaintiff purchased the vehicle on May 23, 2021, “Plaintiff’s breach of implied warranty cause of action accrued on that date and expired four years later on May 23, 2025. Plaintiff did not file suit; however, until June 25, 2025, one year after the four-year limitations period expired.” (Dem., 10:25-27.)

From

the face of Plaintiff’s FAC, his fourth cause of action appears time-barred. Plaintiff generally pleads different tolling doctrines in the FAC, but Plaintiff does not provide a substantive discussion of their applicability to Plaintiff’s fourth cause of action in the FAC, nor did Plaintiff file an opposition providing the Court with law and substantive arguments demonstrating that tolling is applicable and should be applied here. Accordingly, the Court sustains GM’s demurrer as to the fourth cause of action.

C.

Fifth Cause of Action for Fraudulent

Inducement - Concealment: Statute of Limitations

GM next demurs to the FAC on the ground that Plaintiffs’ fraudulent inducement - concealment cause of action is barred by the statute of limitations.

Pursuant

to Code of Civil Procedure section 338, subdivision

(d), there is a three-year statute of limitations for “[a]n action for relief on the ground of fraud or mistake.” “The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Ibid.)

GM

asserts that “Plaintiff entered into a warranty contract regarding the Subject Vehicle on May 23, 2021. (Compl., ¶ 6.) To assert a fraud claim based upon alleged Fraudulent Inducement-Concealment, Plaintiff had to file a claim no later than May 23, 2024. Plaintiff did not. Plaintiff did not file the Complaint until June 25, 2025.” (Dem., 11:7-10.) GM also asserts that “Plaintiff

cannot invoke the delayed discovery rule.” (Dem., 11:11.)

GM

further contends that “Plaintiff cannot invoke the delayed discovery rule because Plaintiff affirmatively states that the alleged ‘[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period....’ (Compl., ¶ 13.) The delayed discovery rule tolls the applicable statute of limitations only if Plaintiff is unable to discover their cause of action with reasonable diligence, and to rely upon it, Plaintiff must plead ‘facts showing that [Plaintiff was] not negligent in failing to make the discovery sooner and that [Plaintiff] had no actual or presumptive knowledge of facts sufficient to put them on inquiry.’” (Dem., 11:11-17.)

Although

Plaintiff does not file an opposition, the Court notes that the statute of limitations for fraud does not begin to run until the discovery of the alleged fraud. However, a plaintiff must allege sufficient facts to support the invocation of the discovery rule. “¿ The discovery-related facts should be pleaded in detail to allow the court to determine whether the fraud should have been discovered sooner.¿” ((Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472); (see also CAMSI IV v. Hunter

Technology Corp. (1991) 230 Cal.App.3d 1525, 1536-1537 [“¿A plaintiff whose complaint shows on its face that his or her claim would be barred by the applicable orthodox statute of limitations, and who intends to rely on the discovery rule to toll the orthodox limitation period, ‘must specifically plead facts which show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. [Citations.] Mere conclusory assertions that delay in discovery was reasonable are insufficient and will not enable the complaint to withstand general demurrer.

[Citation.]’¿”).) The Court notes that Plaintiff’s FAC

generally pleads that he discovered the vehicle’s defects shortly before filing the complaint; however, Plaintiff does not plead specifically how and when he discovered the defects. Thus, as GM contends, Plaintiff is unable to invoke the delayed discovery rule, and on the face of his pleadings, the fifth cause of action for fraudulent inducement - concealment is also barred by the statute of limitations. Accordingly, the Court sustains the demurrer to the fifth cause of action.

In

light of the ruling on the statute of limitations issue, the Court need not

address the other issues raised by GM in the demurrer.

Conclusion

Based on the foregoing, GM's demurrer to the fourth and fifth causes of action is SUSTAINED, with leave to amend.

The Court orders Plaintiff to file and serve an amended complaint, if any, within 20 days of this Order. If no amended complaint is filed within 20 days of this Order, GM is ordered to file and serve its answer within 30 days of this Order.

GM is ordered to give notice of this Order.

DATED: August
21, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court